TERMS OF BUSINESS

(New Clients)

The Gray House Letting & Property Management Limited

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Instruction Form - New Clients

These Terms of Business are intended to cover the relationship between a letting agent and a landlord for the provision of services by the letting agent. Please be sure that you have read and fully understand the fees involved, the terms under which we will act on your behalf and the Landlord obligations upon you. This information can be found on the 'Lettings Terms of Business' and 'Services and Fees' sheet which are attached to this document. By receiving these terms, you confirm that you have obtained any necessary consents and/or licences and that you have read and understood these terms. These Terms of Business shall be deemed accepted by the Landlord upon receipt and by instructing or permitting the Agent to act on the Landlord's behalf, whether or not a signed copy is returned. The absence of a signature shall not affect the enforceability of these Terms.

Rent Smart Wales Registration (Landlord Obligation)

The Landlord acknowledges and agrees that they are legally required to register under Part 1 of the Housing (Wales) Act 2014 and, where applicable, hold a valid licence to carry out letting and/or property management activities. The Landlord confirms that they are duly registered with Rent Smart Wales prior to instructing the Agent, or authorises the Agent to act under its own licence where providing a fully managed service. The Landlord agrees to provide their registration number upon request and to maintain compliance at all times during the period of instruction. The Agent reserves the right to refuse to market or manage the Property where the Landlord is not compliant with their statutory obligations.

Letting Terms of Business ("the Terms")

This document sets out what is expected of you and what you may expect of us. Notwithstanding the introduction of the phrases 'Contract-Holder' and 'Occupation Contract' by Renting Homes (Wales) Act 2016, these Terms will refer to the 'tenant' and 'tenancy' for simplicity. Whilst an estimate of the Third Party's fees is provided for standard works, these fees are subject to change. Works which are not routine will be subject to our own fees. We will not be responsible for the fees quoted or charged by the Third Party, though we will provide you with an estimate of costs before instructing work above the pre agreed costs in these Terms and seek the appropriate authority to proceed, unless such authority has already been given within the Terms. Where the Third-Party fee is not known, the field will read 'TBC' or similar, or be left blank.

Section A. Your Obligations

1. You will provide us with the following:
   - 1.1. proof of identity and one form of evidence of address (Passport or Driving Licence and a Utility Bill, Bank Statement or Council Tax Demand dated in the last 6 months). If you are a group of individuals then we will need the above proof of identity for each individual;
   - 1.2. a certified copy of the Certificate of Incorporation if you are acting as a limited company and proof of identity as detailed in clause 1.1 for each director of the company;
   - 1.3. an up-to-date office copy entry supplied by Land Registry showing that you are the owner of the Property. We can obtain a copy of the title register on your behalf for £12 inclusive of VAT. In the event that there is more than one person listed on the title register the Instruction Form must be signed by all registered owners;
   - 1.4. evidence that your mortgagee and/or superior landlord have provided consent for a tenancy of the Property If applicable;
   - 1.5. a copy of the full HMO licence (if applicable) and confirmation that all licence conditions have been complied with. If the licence has not yet been obtained then confirmation must be given that the application of the licence has been submitted. See HMO Management Service in Section E for more information if the Property is in an area that requires an Additional, Mandatory or Selective HMO licence;
   - 1.6. evidence that the Property is compliant with the Renting Homes (Fitness for Human Habitation)(Wales) Regulations 2022, as amended, specifically that:-
     - 1.6.1. the property has a valid Electrical Installation Condition Report (EICR);
     - 1.6.2. the property has a valid Landlord Gas Safety Certificate (no more than 12 months old)
     - 1.6.3. the property has mains wired, interlinked smoke detectors on each storey that show the date of installation (or you have evidence in the form of an invoice to show the date they were installed);

1.6.4. the property has carbon monoxide alarms (C02) that show the installation date in every room that contains a gas, oil or solid fuel-burning appliance such as a gas cooker, gas boiler and woodburning stove. Undated detectors must be replaced with dated ones to satisfy compliance requirements. See 'Services and Fees' sheet for the costs to obtain and provide a detector(s) on your behalf;

1.7. evidence of PAT testing (Portable Appliance Test) report that is no more than three months old in respect of all electrical portable equipment you have made available for the tenant. Rent Smart Wales Code of Conduct recommends that landlords have PAT testing of electrical items in their rented properties such as freestanding fridges, microwaves, kettles, freestanding electric heaters or cookers which part of the fixtures and fittings of the property;

1.8. evidence that all furniture and furnishings made available, or intended to be made available, to the tenant is compliant with the Furniture and Furnishings (Fire Safety) Regulations 1988, as amended (if applicable). This requires that fire safety labels on upholstered furniture are attached to soft furniture to ensure compliance with the Furniture and Furnishings (Fire) (Safety) Regulations 1988. These labels, often found sewn or stapled on the furniture and indicate that the item meets specific fire resistance standards);

1.9. details of any known asbestos-containing materials within the Property. The Agent will communicate any such information to contractors when instructing works. Where no information is available, the Agent may advise that appropriate caution is exercised and may recommend further investigation or an asbestos survey where reasonably required.

1.10. a valid Energy Performance Certificate (EPC) in respect of the Property, or an explanation if an EPC is not required. You are advised that the Energy Efficiency (Private Rented Property) (England and Wales) Regulations 2015 requires the EPC. Where the EPC is rated lower than E then it must be registered exempt, or carry out works to improve the rating of the Property to and E or higher before letting the Property;

1.11. evidence that the Property is compliant with the Health and Safety Executive form ACOP L8 'The Control of Legionella Bacteria in Water Systems' at the start of, and throughout, the tenancy, by properly undertaking a Legionella risk assessment and, if necessary, making any required changes to the water system of the Property. There is no legal requirement to test for Legionella, Rent Smart Wales license conditions state that Landlords must comply with the 'Code of Practice for Licensed Landlords and Agents' licensed under Part 1 of the Housing (Wales) Act 2014'. The code requires you to ensure the properties you rent out are kept in a safe condition, and with no unacceptable risk to the health of your tenants. The landlord accepts the charges as set out in the Fee Schedule for a Legionella Risk Assessment where the agent deems it necessary;

1.12. confirmation that the Property has been cleaned to an acceptable standard;

1.13. sufficient keys for the Property, at least one set for each individual tenant and one management set for the Agent;

1.14. evidence that the Property is adequately insured;

1.15. details of your registration with Rent Smart Wales and confirmation that the property is registered as a rental;

1.16. supply instruction manuals for all appliances to include all appliances, facilities and boiler(s). Charges will be applied if the agent must source and provide manuals at £12 inclusive of VAT per manual to cover admin time and printing costs.

2. If you are unable to satisfy any of the requirements set out in clause 1 within:-

2.1. a) 14 days of taking over management of an occupied / let property;

b) prior to the commencement of a new tenancy;

we will have the right to rescind the contract. The requirements of clause 1 must be satisfied prior to the property being marketed/managed under our agency.

3. You may instruct us to satisfy the requirements of clauses 1.6, 1.7, 1.8, 1.9, 1.11, 1.12, 1.13, 1.14, 1.15 and 1.17 subject to the following:

3.1. you will be required to pay the additional fees which are set out on the Services and Fees sheet.

3.2. You will also be responsible for the cost of any equipment or contractors instructed. We will take reasonable steps to appoint suitably qualified and insured contractors. While contractors operate independently, we will exercise reasonable care in their selection and instruction.

4. You agree to allow a “To Let” or “Let and Managed By…” board, or similar, to be erected on the Property in a position of our choosing (unless restricted under any building lease).

5. You will respond to communications, provide instructions, and comply with any legal obligations in a timely manner.

6. You will keep us informed of any changes to your contact details and current address.

7. If you are not based in England and Wales then you must provide an address for service of notices in England and Wales (cannot be an address overseas). For full management, this can be c/o The Gray House. For Tenant Find, this must be your own address in England and Wales.

Section B. Our Obligations

8. We will perform the following services on your behalf (“the Services”) and agree to conduct these Services in a competent and professional manner;

8.1. We will comply with your obligations under the Renting Homes (Fitness for Human Habitation) (Wales) Regulations 2022, as amended, to check all smoke alarm and carbon monoxide alarms (C02) in the Property as part of the inventory. Further explanatory information what landlords must do from 1 December 2022 to ensure their property is in good repair and fit for human habitation can be found here https://www.gov.wales/sites/default/files/pdf-versions/2023/11/1/1701099311/fitness-homes-human-habitation-guidance-landlords.pdf. Consequents for not being complaint range from a fine, return of the deposit to the tenant, rent repayment orders, compensation order and inability to obtain possession.

8.2. We agree to visit the Property and recommend a monthly rental value. Once approved by you this sum (“the Rental Value”) will be used to calculate our fees. If appropriate the Rental Value will take account of ground rent and service charges but will not include utilities unless utilities are specifically to be included within the Rental Value.

8.3. We agree to advertise and market the Property at the Rental Value on appropriate local and national portals (Rightmove and our social media pages).

8.4. We agree to accompany any prospective tenant(s) to the Property and provide them with information they may request in respect of the Property. We will endeavour to obtain feedback and report to you as soon as reasonably practical.

8.5. We agree to negotiate any offers from a prospective tenant on your behalf, subject to your prior written authority, but with the acknowledgment that we cannot actively encourage ‘bidding wars’.

8.6. We agree to obtain a holding deposit equivalent to one week’s Rental Value from a suitable prospective tenant. The holding deposit will be treated in accordance with the Renting Homes (Fees etc.) (Wales) Act 2019. In the event the tenant withdraws from the letting, the Agent is entitled to retain the full holding fee to cover our abortive costs, admin time & referencing.

8.7. We agree to notify you of the relevant details of a suitable tenant, including any offers made in respect of the Property, subject to our obligations under GDPR. We may be limited in the level of information that can be provided to you, particularly protected characteristics under the equality Act however, we will provide, at the very least, a general indication of the tenant’s suitability.

8.8. We, unless otherwise instructed by you, agree to instruct an independent referencing agency to obtain a credit reference report, employers' reference, current/previous Landlord reference(s) and last 3 years address history for a prospective tenant, or any guarantor.

8.8.1. You accept that we are not responsible in any way for the accuracy or completeness of the information provided in the tenant reference report;

8.8.2. If you instruct us not to obtain a reference, you accept that we cannot be held responsible for any consequences that arise out of that decision. Such consequences may include failure of the tenant to pay rent on time, or at all, and breach of your insurance policy.

8.9. If you do not proceed with a potential tenant that we have recommended to you then we may be entitled to charge a fee for an abortive tenancy as set out on the Services and Fees sheet.

8.10. We agree to arrange for a suitable date of commencement for the tenancy. You accept that if a date of commencement is agreed but you subsequently withdraw prior to commencement of the tenancy, the holding deposit will be returned to the tenant in accordance with the Renting Homes (Fees etc.) (Wales) Act 2019 and we may be entitled to charge you an abortive fee as set out on the Services and Fees sheet.

8.11. We agree to provide a standard form of tenancy agreement known as an Occupation Contract & Written Statement the cost of which is to be borne by you as set out on the Services and Fees sheet. You may request to inspect this prior to the commencement of the tenancy and may request amendments or additional terms, the cost of which to be borne by you as set out on the Services and Fees sheet. You accept that we are not responsible in any way for the legality or consequence of additional or amended terms in the tenancy agreement requested by you and you are advised to seek separate legal advice. The Agent signs the Contract for and on behalf of the Landlord.

8.12. We agree to comply with your statutory obligations for service of documents (for example, serving the Energy Performance Certificate, EICR, GSC, RHW2 on the tenant) at the start of the tenancy, but you remain responsible for compliance with statutory obligations once the tenancy has begun. We will advise you of what and when additional documentation may need to be provided after the initial documents are served.

Section C. Tenant Find Service (non-managed)

9. If you instruct us on the Tenant Find Service, you hereby agree to each clause under this heading, in addition to clauses 8 to 21 above.

10. We agree to collect the tenancy deposit from the tenant prior to the commencement of the tenancy. We will either transfer the sum to the tenancy deposit scheme of your choosing, or to your bank account upon receipt of confirmation you have registered the deposit with your chosen deposit scheme. You must provide the tenant with required information to satisfy the requirements of Section 45 of the Renting Homes (Wales) Act 2016 and Renting Homes (Deposit Schemes) (Required Information) (Wales) Regulations 2022. Any failure on your part to protect the deposit within the terms of the scheme or provide such information that may be required in order to register the tenancy deposit within 30 days of the tenancy deposit being received by us, may result in you returning the deposit to the tenant and paying compensation.

11. We will collect the first months rent (in addition to any additional rent in advance which the tenant has agreed to pay) from the tenant.

12. We agree to transfer the cleared rental payments, less our fees and other recoverable expenses, **within 7 working days of receipt**.

Section D. Full Management Service

13. We agree to arrange for a professional independent inventory clerk to provide an Inventory and Schedule of Condition prior to the commencement of any tenancy covered by the Terms. You agree to bear the costs of this as set out on the Services and Fees sheet. You accept that we cannot accept liability for errors or omissions on the part of the independent inventory clerk but a claim can be made with the Inventory Provider if any negligence results in a reasonable financial loss to the Landlord. If you instruct us not to obtain an Inventory and Schedule of Condition, the Tenant must agree to this in writing. Where you and the Tenant agree not to have an inventory, then you accept that we cannot be held responsible for any consequences that arise out of that decision. Such consequences may include an inability to claim for damage to the Property including and in excess of the amount held as a tenancy deposit.

14. Where the landlord discounts part of or all of the rent for any purpose (e.g. goodwill / in lieu of repairs / compensation / reimbursement), our management fee will remain based on the agreed percentage of the contractual monthly rent.

15. Where the tenant is paying more than 1 months rent in advance, you agree that we retain 1 month rent on account for repair and maintenance.

16. We agree to transfer the cleared rental payments, less our fees and other recoverable expenses, **within 7 working days of receipt**. We will also provide you with a monthly statement of rents received ('the Statement') and, at your request, provide the Statement to your accountant or other authorised person. Additional copies of the Statement are available, the cost of which is to be borne by you as set out on the Services and Fees sheet.

17. **Portfolio Landlords** – portfolio landlords are those for whom we manage 4 or more properties. Portfolio landlords are automatically moved to the last day of the month for payments and they will receive one grouped landlord statement and one combined payment made by same day bank transfer.

18. We agree to use our reasonable endeavours to contact the tenant if the rent due under the tenancy agreement is not received within 2 days of falling due.

19. We agree to notify you of any instances where rent or other sums due from the tenant has been outstanding for more than 14 days, even if the payments have subsequently been received.

20. We may at any time after the fixed term contact you to advise you that a RHW12 Notice can be served and suggest a fair market rate. If you want us to serve a RHW12 notice then you agree to pay the fee set out in the Services and Fees Sheet. A tenant may challenge a RHW12 Notice through the Property Tribunal who will then set what they consider to be a fair market rate. We are not responsible in the event the Property Tribunal sets a rent lower than that we advised would be a fair market rent.

21. In addition to serving a RHW12 Notice, we can provide a market appraisal to show the rent in comparable properties by utilising our own data as well as that of other local agents and tribunal decisions. By providing this report to the tenant it may avoid the risk of the increase being challenged, and it will stand as evidence for the benefit of the tribunal in the event of a challenge. The fee for this is set out in the Services and Fees sheet

22. If you elect to terminate these Terms, you must register the deposit with one of the authorised tenancy deposit schemes and provide us with all of the information and documentation required to transfer the tenancy deposit to your agents within 30 days. If you fail to do this, we will return the tenancy deposit to the tenant.

23. We agree to arrange for a professional independent inventory clerk to provide a 'Check Out Report and Schedule of Condition' within 10 working days of the tenant surrendering possession of the Property. There is no cost for this as the cost of the inventory includes the end of tenancy checkout report. We cannot accept liability for errors or omissions on the part of the independent inventory clerk. You understand that in the absence of a Photographic Inventory and Schedule of Condition together with a Checkout Report will substantially diminish the likelihood of a successful claim against the tenant's deposit.

24. We will communicate with the tenant at the end of the tenancy and agree how the tenancy deposit should be allocated. This must be fair and reasonable and take into consideration the length of the tenancy, number of occupiers the condition and age of items at the start of the contract. An adjustment may be required to calculate a contribution from the tenant as the landlord cannot be put in a better position than they were at the start of the tenancy (betterment).

25. We agree to negotiate between you and the tenant in the event that there is a dispute over the tenancy deposit at the termination of the tenancy. We will during this accept all reasonable instructions from you but must also abide by a general doctrine of fairness in all cases. You agree to bear the cost of our time and effort in negotiations (which might include finding and referring the dispute to an arbitrator) as per the Services and Fees sheet. You are referred to 'The Tenancy Deposit' section of the Terms for more information.

26. When the landlord, who has a signed photographic inventory, chooses to proceed with dispute against the agent's best advice, the landlord will be liable for our costs relating to the time and administrative work involved in preparing evidence and submitting the case to the tenancy deposit scheme. The agent bears no financial liability for any loss incurred by the landlord, and the landlord agrees to accept the adjudicator's decision as final and binding. We will always seek appropriate compensation and reimbursement for damages and cleaning on your behalf to ensure you are not left out of pocket, but these must be reasonable and take in to account the length of the tenancy, condition at the start of the contract, number of occupiers and be a fair and realistic approach. See Landlord Fee Schedule.

27. In the event a settlement cannot be reached then the scheme will continue to hold the deposit for the duration of any claim that you or the tenant may make through the adjudication process provided such steps are taken in a timely manner.

28. If an agreement is not reached between you and the tenant within 10 working days, the tenant has the right to apply to the tenancy deposit scheme to adjudicate on the proposed deductions. You are advised that, whilst we can assist in this regard, if you do not respond in a timely manner then the tenancy deposit scheme may adjudicate solely upon the tenant evidence.

29. The tenant may elect not to use the tenancy deposit scheme's adjudication process or may not have the right to use it. In these circumstances, if there is still a dispute, you must take steps to resolve the matter which may include issuing proceedings via the Court. You should take legal advice in this regard. If you do not take timely steps to genuinely resolve the matter, then the agent may return the tenancy deposit to the tenant so that you may pursue the tenant directly. You are advised that the tenant also have the ability to pursue you through the Court for the return of the tenancy deposit.

30. If you instruct us on a Full Management Service, we hereby agree to each clause under this heading, in addition to clauses 8 to 37 above.

31. In addition to clause 8.11 we will comply with your statutory obligations during the tenancy by notifying you of the need for inspections to be conducted. Where these inspections generate documents that must be served on the tenant, we will serve these within any relevant statutory time limit.

32. We agree to write to the utility companies and the local authority to inform them of the new occupants of the Property, the date of commencement of the tenancy, provide details of meter readings where possible to obtain.

33. If you instruct us to do so, we will retain from the initial rental payment a sum which will be held to create a repair float. The float can be replenished by you through deductions from subsequent rental payments or if necessary, a bank transfer by you to our client.

34. We agree to conduct a minimum 1 visit per year (subject to the tenant allowing access on any given day with appropriate notice) to the Property to inspect the state of repair and to identify all necessary works of repair and maintenance. You may request that we make additional visits to the Property but agree that the cost of this will be borne by you as per the Services and Fees sheet. We will provide you with an inspection report within 14 days of each visit. We will not be held responsible for the condition of a property where the tenant refuses to allow access to the property.

35. We, if authorised by you, agree to pay outgoings in relation to the Property, provided that we hold sufficient funds. The liability for such outgoings remains your responsibility and we will not accept any liability for late or missed payments.

36. We will notify you as soon as practically possible where we are unable to discharge any liability or where we are unable to instruct contractors due to insufficient funds. You must transfer sufficient funds to us so we can arrange maintenance. Depending on the value and complexity of the work the agent may charge additional fees for overseeing this work, as set out in the Services and Fees sheet under Arrangement Fees. We retain the right to refuse instructions of such work at which point the responsibility for such work will revert to you, and you may be required to obtain a Landlord Licence under the Renting Homes Wales act to complete this work yourself.

37. You authorise us to instruct contractors to undertake general repairs and maintenance to the Property up to the pre-agreed value of £300 inclusive of VAT. We are under no obligation to seek your prior approval to arrange minor works up to this amount. These works will be paid for from the float or rent.

38. We, except in the case of emergency, will seek authority from you before instructing contractors to conduct any works over £300 inclusive of VAT. Upon receipt of your instructions, we will instruct retained contractors to undertake the work. The agent may request monies in advance to pay for such works before we act on the instructions.

39. In an emergency we will have discretion to incur unauthorised works above £600 inclusive of VAT. This discretion will only be exercised where failure to immediately remedy such works would cause you and/or the tenant far greater loss than the cost of the works. A gas leak or a burst water pipe would be examples of emergency works. The cost of these works will be reimbursed to us from the next rental payment(s) following the expenditure, or from you directly.

40. Landlords accept that unless they have provided us with full details of any guarantees, service agreements, or warranties held for appliances / boilers etc, they will be liable for the cost of any contractor/appliance call outs for repairs where we have not been furnished with relevant documents to cover warranties / guarantees and service agreements.

41. We, unless you specifically ask us not to, will supervise repair or maintenance work of the Property. For works estimated to cost in excess of £3,000.00 inclusive of VAT fees are 12% inclusive of VAT as an arrangement fee.

42. We agree to show on the Statement all expenditure in respect of the Property.

43. We will not be responsible for the management of any areas that are not demised to the tenant as part of the Property.

44. Fully managed landlords understand that as part of the management of the property, and whilst they are under our Rent Smart Wales Licence (RSW) for property management activities, we can use our own retained contractors to undertake maintenance on your rental property. We have fully vetted and insured gas engineers, electricians, appliance engineers, maintenance contractors, cleaners, roofers, gardeners etc and you agree to use our retained contractors in order that we can satisfy our licence requirements under RSW.

45. If the landlord wishes us to use their preferred contractors, we must be in receipt of the following before we are able to instruct the Landlord's preferred contractor:-

    45.1. Professional Indemnity (PI) Insurance showing:
    - **Policy Number:** This is a unique identifier for their insurance policy.
    - **Insurer Name:** The name of the insurance company providing the coverage.
    - **Policy Limit:** The maximum amount the insurer will pay out for a claim.
    - **Cover Period:** The start and end dates of the policy.
    - **Certificate of Currency:** A document confirming the policy is active and valid.
    - **Evidence of PI Insurance:** Request a copy of the insurance certificate or policy schedule to verify the coverage.

    45.2. Company Details:

- **Company Name:** The full, registered name of the contractor's company.
- **Company Registration Number:** A unique identifier for their company, often required for legal and financial transactions.
- **VAT Registration Number (if applicable):** If the contractor is VAT registered, this number is needed for tax purposes.

45.3. Other Important Information:

- **Contact Information:** Phone number, email address, and physical address for communication.
- **Terms and Conditions:** A copy of their standard terms of service or contract agreement.

46. Landlords would not need a Landlord Licence if the agent making access arrangements with the tenants for maintenance and repairs. Unlicensed Landlords cannot undertake any letting and / or management activities without a Rent Smart Wales Landlord Licence. Arranging access for contractor maintenance is a management activity under Rent Smart Wales and a Landlord Licence would be required for this.

47. The landlord accepts that the legal duty remains on the Agent to ensure and be able to demonstrate that the responsibilities are undertaken within legislative requirements, the duty includes requesting copies of documentation, checking the documentation for legal compliance, and retaining records of the documentation.

48. Activities which require a valid RSW Licence:- arranging or conducting viewings with prospective tenants; gathering evidence for the purpose of establishing the suitability of prospective tenants (e.g, references, credit checks; preparing, or arranging the preparation, of a tenancy agreement; preparing, or arranging the preparation, of an inventory; collecting rent; being the principal point of contact for the tenant in relation to any matters arising under the tenancy; making arrangements to carry out repairs/maintenance; making arrangements with a tenant to access to the dwelling for any purpose; checking the contents or condition of the dwelling, or arranging for them to be checked as part of a current tenancy or for one which has ended; and serving notice to terminate a tenancy.

Section E. HMO Management Service

49. If you instruct us on an HMO Management Service, we hereby agree to each clause under this heading, in addition to clauses 8 to 51 above.

50. You are responsible for applying for the HMO licence and you will remain the 'fit and proper person' for the purposes of the HMO licence.

51. We agree to visit the Property quarterly, or in line with the specific requirement of the HMO licence. At each visit we will ensure that the conditions of the HMO licence are not broken.

52. We will not charge for the annual routine visits referred to above but reserve the right to charge for visits above the minimum. The fee for additional visits is set in the Fees sheet.

53. You are advised that legislation and/or local rules may change which effect whether a property is a licensable HMO. In these circumstances it is your responsibility to agree to amended Services with us. We are not responsible for notifying you if legislation and/or local rules change.

F. Void Management Service (vacant property / between tenancies)

54. If you instruct us on a Void Management Service, we hereby agree to each clause under this heading;

55. We agree to visit the Property for monthly fee for the Void Management Service, which will be agreed in writing as per the Services and Fees sheet. You agree to pay this fee in advance of each month.

56. We agree to visit the Property once per fortnight or more depending on your insurers requirements (during normal office hours) and recommend to you any repair or maintenance deemed necessary for the Property, and to seek your instructions as to the conducting of such work. Upon receipt of such instructions from you, we will instruct retained contractors to conduct the work required. Charges are £60 inclusive of VAT per visit

57. You agree to provide us with funds in order for us to engage contractors to conduct agreed works.

58. We agree to liaise with insurance companies where necessary and will attend the Property to allow access for contractors subject to our Additional / Void Property Visit fee of £60 inclusive of VAT per visit.

Section G. Fees

59. You agree that our fees will be payable where the tenant (or an individual introduced as part of a group of tenants) are found as a result of a viewing conducted by us and/or due to the advertising of the Property during the Terms and/or through your own contacts and/or through a third party's contacts whilst the Terms are in force. In the event you instruct multiple agents to market the Property then if we have conducted a viewing with a prospective tenant but the prospective tenant (or an individual introduced as part of a group of tenants) agrees a tenancy for the Property through another agent, the agent may charge a fee for our work as we do not offer joint agency. The fee for this is set in the Services and Fees sheet as Abortive Tenancy (Property marketed).

60. Expenses, as well as any other sums that you may owe us (such as contractor invoices), will be deducted from the Rental Value, though the agent may charge you directly for any shortfall. In the event the tenant does not pay part or all of the rent, the agent may invoice you directly for any expenses or contractor invoices.

61. We are under no obligation to provide copy invoices to the landlord where the Agent has paid the contractors invoice and recovers the balance from the landlord. Invoices belong to the agent as we are the client of the contractor and will not be amended to facilitate the claim of VAT by the landlord. Copies of contractor invoices paid from the client account, unless they are bulk invoices, can be made available to the landlord upon reasonable request

62. For invoicing purposes, our fees are owed each month in advance coinciding with the first day of the tenancy. the agent may change the invoicing period to coincide with the way the rent is paid.

63. Where our fees are to be paid as a percentage of the rent, this percentage will continue until the Terms are terminated, unless, for whatever reason, the tenancy continues with the tenant, or any such individuals who were part of the previous group of tenants, or to a person who was introduced to you by the tenant, or to a tenant introduced by us, or a party directly connected to that tenant, within 12 months of the introduction.

64. If the charges outlined above are not paid by you by the due dates, interest will accrue at the rate of 4% per annum above the base rate from time to time of Barclays Bank plc. If any payments remain outstanding for 14 days or more, we will be entitled to suspend the Services for you until such sums are paid in full. You agree to pay all fees incurred by us in collecting outstanding sums**.**

65. You agree that any fees owed to us by the tenant under the terms of the tenancy agreement can be recovered from the tenancy deposit and take priority over any claim you have against the tenancy deposit.

66. The agent may recover any fees due to us and payable under the terms of the tenancy agreement from you in the event that they cannot be recovered through the tenancy deposit.

67. VAT will be levied at the prevailing rate. Where fees are quoted inclusive of VAT within the Terms, the VAT is calculated at the current rate of 20%.
68. The agent may amend our fees and terms upon giving not less than 30 days' written notice. Any changes will apply from the date specified in the notice. The client may terminate the agreement prior to the changes taking effect without penalty

Section H. The Tenancy Deposit

69. In accordance with the Housing Act 2004, the tenancy deposit of any Occupation Contract (non-Occupation Contracts are excluded) must be protected by an approved, recognised scheme.

70. We are registered with both the TDS and DPS which are administered by:

    The Dispute Service Ltd (TDS)
    West Wing, First Floor, Maylands Building, 200 Maylands Avenue, Hemel Hempstead, HP2 7TG
    Phone: 0300 037 1000 / Email: deposits@tenancydepositscheme.com
    Online: the TDS can be emailed through the Contact TDS page at www.tenancydepositscheme.com
    and
    The Deposit Protection Service (DPS)
    The Pavilions, Bridgwater Road, Bristol, BS99 6AA
    Telephone No: 0330 303 0030
    Online: Enquiry Forms are available through the Virtual Customer Service Agent or the Frequently Asked Questions at www.depositprotection.com

71. These are custodial schemes. This means that the tenancy deposit will be held by the administrator of the Scheme until you and the tenant agree how the tenancy deposit is to be apportioned, or until any dispute between you and the tenant has been resolved.

72. Any interest earned on the deposit will belong to the deposit scheme.

Section I. Cancellation

73. Subject to the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 the Terms will continue until it is ended in accordance with the clauses below.

74. Within 14 days of instructing us under the Terms you may change our mind and cancel the instruction. You do not have this power if you arranged and signed the Terms in our offices.

75. To exercise the right to cancel, you should complete the cancellation form at the end of the Terms and send it to us either by post or by email to arrive before the end of the 14 days.

76. If you cancel the Terms we will reimburse to you all payments received, less our reasonable costs for Services already rendered.

77. Cancellation may not be used if you instruct us to provide the Services within 14 days of instruction.

78. By default, signing the Terms authorises us to provide the Services as soon as possible, unless instructed otherwise.

Section J. Termination

79. If the Terms are not cancelled using the Cancellation clauses then the below clauses will apply.

80. You may terminate the Terms by giving 1 months' written notice. You agree to pay all fees owed to us up to the date of termination on or before the date of termination as detailed in the Fee Schedule. Where possible notice should run in line with the anniversary date of the tenancy. Where the Agent has introduced a tenant, the notice period is 6 months as the landlord is unable to cancel their instructions immediately after the first contract-holder has taken possession.
81. Any fees payable as part of the Terms will continue to be payable until the applicable notice period, as set out above, has passed and as detailed in the Landlord Fee Schedule.

82. The agent may terminate the Terms immediately by written notice to you if you are in breach of the Rent Smart Wales Code of Conduct or Licence Conditions or where any act or omission on your part makes it impractical for us to continue to provide the Services.

83. Notwithstanding the above, we may terminate the Terms by giving you 1 months' written notice.

Section K. General Terms

84. Without prejudice to the generality of the Terms, we will comply with all reasonable instructions from you from time-to-time in respect of the management of the Property or any part of it.

85. You will indemnify us against all loss and expense, including legal fees, that we suffer in consequence of any act or omission on your part, or as a result of us instructing your preferred contractors and including any act by you that breaches our RSW licence.

86. You agree that we are not responsible for non-payment of rent (whether in part or in full) on the part of the tenant.

87. You agree that we are not responsible for loss or damage (whether direct, indirect, or consequential) sustained as a result of us being unable to discharge any liability due to having insufficient funds in the Fund.

88. You agree that we are not responsible for managing or overseeing the Property when there is no tenancy agreement in place unless we are instructed under the Void Management Service. See Landlord Fees Schedule.

89. You agree that we are not responsible for showing the tenant how to use any of the appliances, fixed or moveable, in the Property, but we will provide manuals.

90. You remain responsible for arranging for any mail in your name (including utility and Council Tax bills) to be redirected and we will not be responsible for the collection or forwarding of mail from the Property.

91. We may accept receipt of the keys in respect of the Property at the termination of the tenancy. You accept that it is thereafter your responsibility to collect those keys from us should you require them.

92. You agree that if a person who has been introduced by us, or introduced by somebody who was introduced by us, takes a tenancy of the Property by direct arrangement with you, or another agency, within 12 months of that introduction then you agree to remain liable for the fees associated with the Tenant Find Only Service for the tenancy.

93. Upon you signing the Terms, we will be deemed to be instructed to sign on your behalf all documents necessary to affect an Occupation Contract, or other tenancy if an Occupation Contract is not appropriate, of the Property. We will use its reasonable endeavours to notify the terms of such documents and seek your approval prior to affecting the same. You accept that if we are unable to contact you, we may agree to terms we consider acceptable.

94. You agree that any interest incurred on monies being held for you in the Client Account will belong to us, with the exception of the tenancy deposit, for which interest will belong to the deposit scheme specified in the tenancy agreement.

95. If any term or provision of the Terms is held to be invalid, illegal, or unenforceable for any reason by any court of competent jurisdiction, such term or provision will be severed, and the remainder of the Terms will continue in full force and effect where possible.

96. We may employ suitably qualified and appropriately insured subcontractors or third-party service providers to carry out any part of the Services on our behalf, including (but not limited to) mid-term inspections, inventories, check-out reports, PAT testing, Legionella risk assessments and any other specialist services. All subcontractors

will be required to hold appropriate qualifications, insurance and comply with all relevant legislation and, where applicable, the requirements of Rent Smart Wales. By entering into these Terms, you acknowledge and consent to our use of such subcontractors. We remain responsible for exercising reasonable skill and care in their selection and instruction.

97. You accept that we are unable to provide advice in relation to your liability for tax on income arising from the letting of the Property and you confirm that you will seek independent tax advice from an accountant.

98. We confirm that we are obliged to inform HM Revenue and Customs (HMRC) on demand when the Property is let, including confirmation of the rental income received. Your attention is drawn to the 'Tax' section below.

99. Except as expressly provided (including in respect of indemnity), the parties do not intend any term or provision of the Terms to create any rights or benefits to any other party other than the parties to the Terms or to be enforceable pursuant to the Contracts (Rights of Third Parties) Act 1999, but this does not affect the rights or remedies of any third parties which may exist or which may be available apart from the Act.

100. Reference to any statute or statutory provision will be deemed to include any statutory modification or re-enactments thereof, or any rule or regulations made thereunder or any enactment repealing and replacing the Act referred to.

101. Unless the context otherwise requires, words importing the singular will include the plural and vice versa; words importing the masculine gender will include the feminine gender and vice versa; and references to persons will include bodies of person whether corporate or incorporate.

102. Headings are inserted for convenience only and will not affect the construction or interpretation of the Terms.

103. The Terms will be governed by the law of England and Wales and you submit to the exclusive jurisdiction of the courts in England and Wales.

104. The Terms, including all documents attached hereto, including but not limited to the Instruction Form and Services and Fees sheet embodies the entire agreement and understanding between the parties hereto with respect to the subject matter of the Terms and supersedes all prior or contemporaneous agreements and understandings other than the Terms relating to the subject matter.

105. The Terms may be amended only by written agreement signed by both you and us. No provisions in the Terms may be waived except by a written document signed by both you and us. No waiver of a provision will be deemed to be or will constitute a waiver of any other provisions of the Terms. Notwithstanding the above, we will have the right to notify you of an alteration to the Services and Fees sheet by giving not less than three months' notice. The alteration to the Services and Fees sheet will take effect at the first date at which Fees are owed to us, as per the Fees section above. The Landlord acknowledges that they have not relied upon any representation, statement or promise made by the Agent other than those expressly contained within these Terms.

106. In the event that we sell our business to a third party, you consent to the third party providing the Services and abiding by the Terms in place of us, subject at all times to your right of Cancellation and Termination set out in the Terms.

107. We are a member of the dispute and compensation scheme operated by the Property Redress Scheme (www.theprs.co.uk) and our membership number is: PRS022329.

108. We are a member of the Association of Residential Letting Agents (Propertymark) and comply with the code of conduct prescribed by that organisation.

109. We have Client Money Protection with ARLA Propertymark and Scheme Ref: C0133497

110. We are Registered and Licensed with Rent Smart Wales (Registration Number: #A2-000-12081 / License Number: #LR-79098-87845)

Section L. Limitation of Liability

111. The Subject to the provisions of these Terms, our total aggregate liability to you arising out of or in connection with these Terms or the Services (whether in contract, tort (including negligence), breach of statutory duty or otherwise) shall not exceed the total fees paid, or payable, by you to us for the Services during the during the twelve months immediately preceding the event giving rise to the claim.

112. We shall not be liable for the acts, omissions or negligence of any third-party contractor, supplier or professional instructed on your behalf, except where we have failed to exercise reasonable skill and care in selecting or instructing that contractor.

113. Where services are carried out by third parties who are not our employees, those services are provided by the relevant third party and not by us. We accept no responsibility for the quality, performance or outcome of such services unless the loss arises directly from our own negligence or breach of duty in selecting or instructing that third party.

114. Nothing in these Terms excludes or limits our liability for death or personal injury caused by our negligence, fraud or fraudulent misrepresentation, or any other liability which cannot lawfully be excluded or limited. Subject to this, we shall not be liable for any indirect or consequential loss, loss of profit, loss of business, loss of goodwill or any other pure economic loss arising out of or in connection with the Services.

Section M. Tax & Non Resident Landlords (NRL's)

115. You are obliged to notify us where you are living, working, or travelling **outside of the United Kingdom for more than six months**. If you satisfy the above condition, or otherwise live permanently outside of the United Kingdom, you may become liable for Non-Resident Landlord Tax and a form NRL1 must be completed and sent to HMRC. HMRC will provide you with an NRL8 Approval Number. We will then deduct the appropriate amount of Non-Resident Landlord Tax from any rent paid by the tenant and forward it to HMRC. If you do not provide an NRL8 Approval Number then the tenant will be obliged to deduct the tax from the rent payment and pay it to HMRC. You are advised to seek our own legal advice in respect of tax liabilities.

116. Where we are required to report to HMRC for on UK residents, there will be an administrative fee charged as set out in the Services and Fees sheet

Section N. Landlord's Rent Protection Insurance (RPI)

117. We recommend that our landlord customers take out Landlord Rent Protection insurance through Rightmove Tenant Referencing. Letting information about RPI can be provided on request. The policy is taken out by us and charged back to you as set out in the Services and Fees sheet. Not available where the tenant pays more than 1 months rent upfront. This is not landlord buildings insurance.

Rent	**Annual Policy (inclusive of VAT)**
£1 - £500	£336.00
£501 - £700	£390.00
£701 - £2,000	£438.00
£2001 - £3,000	£576.00
£3001 - £5,000	£750.00
£5001 - £8,000	£912.00

Section O. Data Protection

118. The Landlord warrants that any personal data supplied to us has been collected, processed and disclosed in accordance with the UK General Data Protection Regulation ("UK GDPR"), the Data Protection Act 2018 and

all other applicable data protection legislation. The Landlord agrees to indemnify us against any loss, claim or liability arising from any breach of this warranty.

119. We will process personal data only where we have a lawful basis to do so and in accordance with the UK GDPR, the Data Protection Act 2018, our Privacy Notice and any lawful and reasonable written instructions received from you, where applicable.

120. You authorise us to disclose personal data where reasonably necessary for the provision of the Services, including (but not limited to) prospective tenants, referencing agencies, tenancy deposit schemes, inventory providers, contractors, utility providers, local authorities, insurers, legal advisers, debt recovery agents, the courts, Rent Smart Wales, HM Revenue & Customs and any other organisation where disclosure is required by law or is reasonably necessary for the management of the Property.

121. Where utility switching or utility notification forms part of the Services, you authorise us to share relevant personal information with utility suppliers or utility management companies for the purpose of opening, closing or transferring utility accounts relating to the Property.

122. We will take reasonable technical and organisational measures to protect personal data against unauthorised or unlawful processing, accidental loss, destruction or damage. We will retain personal data only for as long as is reasonably necessary to fulfil our legal, regulatory and contractual obligations or as otherwise required by law.

123. We owe duties of confidentiality to tenants, guarantors and other third parties. Accordingly, we may refuse to disclose information to you where disclosure would breach the UK GDPR, our legal obligations, confidentiality obligations, or the rights and freedoms of another individual.

124. Upon termination of these Terms, we may retain records relating to the Property, the tenancy and our instructions for such period as is reasonably necessary to comply with our legal, regulatory, insurance and professional obligations.

Section P. Force Majeure

125. We will not be liable for any default (or deemed to be in breach of contract) by reason of any delay or failure due to any circumstances beyond our reasonable control to include cyber attack, utility failure, telecommunications failure

Section Q. Notices

126. Any notice or other communications to be given under the Terms will be in writing and may be delivered by hand or sent by first class prepaid recorded delivery to the relevant addresses stated in the Terms. Communications will be deemed to have been received at the time of delivery if delivered by hand or two working days after posting, if posted.

Section R. Sole Agency

127. You agree that we are appointed on a sole agency arrangement. A sole agency arrangement means that no other letting agent will be appointed by you to market the Property. The sole agency arrangement can be terminated by you by giving us not less than 1 months written notice.

Section S. Duration

128. Tenant find service - The agreement will end as soon as the contract has commenced.
129. Full management service - The agreement will run as long as the parties have agreed or until the end of the contract, unless cancelled earlier.

130. Unless expressly stated, we do not have authority to act and are no longer liable for any events occurring after that date (unless they arise from some earlier act or omission by us as the Agent.)

Section T. Agreement to Proceed

Please be advised our services are provided on a Sole Agency basis only. We do not offer Joint Agency as detailed in Section R. The Landlord warrants that all information provided to the Agent is complete and accurate and agrees to indemnify the Agent against any loss arising from inaccurate information. Where the Landlord is a company, the individual signing these Terms warrants they have authority to bind the company.

Please sign below to confirm your instructions.

Landlord 1	**Landlord 2**
Signed……	Signed……
Full Name……	Full Name……
Date……	Date……

Agent

…… Date……

Full Name: **Michelle Barber (Director)**

Section U.

You, having the legal right to let the property / properties below and hereby appoint us, The Gray House Letting & Property Management Limited (Company Registration Number 12501954), of Birchgrove House, 102 – 104 Caerphilly Road, Cardiff CF14 4AG to manage the property/properties known as:

……

……

……

……

Section V. Bank Details for Payment of the Rent:-

Account Number:

Sort Code :

Account Name:

……

Section W. Cancellation Form (within 14 days if signed away from the office)
Where Terms of Business are entered into away from our office or via electronic means, landlords are provided with cancellation rights in accordance with the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013

To: **The Gray House Lettings**

I/We* hereby give notice that I/We* cancel my/our* contract for the supply of service:

Name of Landlord(s): _____

Address of Landlord(s): _____

_____

Signature of Landlord(s): ……

Date: ……

LANDLORD SERVICES & FEES

FULLY MANAGED

Fully Managed Monthly Fee
14.4% inclusive of VAT
of the monthly rent ignoring any Incentives, discounts or rent reductions

Set up Fees
£474 inclusive of VAT
The following is included in the fully managed set up fees: -

✓Professional photographs
✓Erecting a To Let board (where applicable)
✓Advertising on Rightmove & Social Media
✓Property enquiries and qualifying applicants
✓Accompanied viewings and feedback
✓Application assessment and issuing a draft Occupation Contract
✓Tenant/Guarantor Rightmove referencing (photographic ID, proof of address, credit checks, visa / right to rent, employers reference, current and / or previous landlord reference.
✓Arranging a Photographic Inventory & Schedule of Condition* (see cost below)
✓Key cutting if required (+ key costs)
✓Collect first months rent and deposit
✓Preparation and execution of a Renting Homes Wales Occupation Contract & Written Statement
✓Preparation and execution of Guarantor Contractual Agreement (if applicable)
✓Service of RHW2
✓Accompanied move in to the property
✓Protection of the deposit in a government scheme
✓Update to council tax, utilities, & Landlord Tap registration (water).

Photographic Inventory & Schedule of Condition and End of Tenancy Checkout Inspection Report
£210 inclusive of VAT
Inventories are a requirement under the Renting Homes Wales Act, unless the tenant agrees in writing not to have one. Inventories and checkouts include meter readings (where accessible), smoke alarm & C0 alarm compliance and safety checks. Landlords are advised under the Consumer Contracts Act that inventories and mid term inspections are sub contracted to Biorisk.

Landlord Rent Protection Insurance

Rent	Annual Policy (inclusive of VAT)
£ 1 - £500	£336.00
£501 - £700	£390.00
£701 - £2,000	£438.00
£2001 - £3,000	£576.00
£3001 - £5,000	£750.00
£5001 - £8,000	£912.00

12 month policy, only available. Fully managed only.

House of Multiple Occupation (HMO)
Fully Managed Monthly Fee
21.6% inclusive of VAT of the monthly rent ignoring any Incentives, discounts or rent reductions

Fees for the service of Notice for Possession
£120 inclusive of VAT per Notice. To cover time, admin and P&P in accordance with preparation and formal issue of a notice for possession. Fully managed only.

Court Attendance Fees
£300 inclusive of VAT per visit. To cover the cost of time, travel, admin preparation and expenses in representing the landlord. Fully Managed only.

Works over £3,000 inclusive of VAT - Arrangement Fee
12% inclusive of VAT see terms of business for more information - Fully Managed only.

HMO License/Renewal Application
£900 inclusive of VAT payable in advance. Not available for let only landlords.

Deposit Dispute Fee
£180 inclusive of VAT To cover the time and admin associated with the preparation of evidence and submitting the case to the tenancy deposit scheme, dealing with correspondence relating to the dispute. This only applies where the landlord has a signed photographic inventory. The agent is not liable for any financial loss to the landlord and the landlord accepts that the decision of an adjudicator is final and binding.

Landlord Withdrawal Fees (before move-in):
Where The Gray House introduces a tenant who has provided satisfactory references and is ready, willing and able to proceed but the Landlord withdraws the property or declines to accept the tenant, the Landlord will be liable for an abortive letting fee to cover the costs associated with the marketing, advertising and tenancy set-up should the landlord withdraw from the tenancy before it has started.
60% inclusive of VAT of a months rent.

Landlord Management Withdrawal Fees
Where a landlord wishes to move the management of their property to another agent or to self manage, fees are 60% of 1 months inclusive of VAT per tenancy. See terms of business for conditions.

Pre-Authorised Repair Limit
£300 inclusive of VAT
You authorise us to instruct contractors to undertake general repairs and maintenance up to the pre-agreed expenditure limit of £300 inclusive of VAT without obtaining further approval.

Version 8.0 (09-26)

The Gray House Lettings and Property Management Limited
Birchgrove House, 102 - 104 Caerphilly Road, Cardiff CF14 4AG
info@thegrayhouse.co.uk www.thegrayhouse.co.uk 029 2069 2222 @thegrayhouseltd

LANDLORD SERVICES & FEES

LET ONLY (TENANT FIND)

Tenant Find Fee

72% inclusive of VAT of one month's rent (subject to a minimum charge of £600 inclusive of VAT), ignoring any incentives, discounts or rent reductions.

The following is included in the Let Only set up fees: -

✓Professional photographs
✓Erecting a To Let board (where applicable)
✓Advertising on Rightmove & Social Media
✓Property enquiries and qualifying applicants
✓Accompanied viewings and feedback
✓Application assessment and issuing a draft Occupation Contract
✓Tenant/Guarantor referencing (photographic ID checks, proof of address check, financial credit checks, visa / right to rent, obtaining an employers reference, current and / or previous landlord reference and any other information.
✓Arranging a Photographic Inventory & Schedule of Condition*
✓Collect rent and deposit
✓Preparation and execution of Renting Homes Wales Occupation Contract
✓Preparation and execution of Guarantor Agreement (if applicable)
✓Service of RHW2
✓Accompanied move in to the property

Photographic Inventory & Schedule of Condition

£210 inclusive of VAT

Inventories are a requirement under the Renting Homes Wales Act, unless the tenant agrees in writing not to have one. Inventories and checkouts include meter readings (where accessible), smoke alarm & C0 alarm compliance and safety checks. Landlords are advised under the Consumer Contracts Act that inventories we instruct on your behalf are sub contracted to Biorisk.

End of Tenancy Checkout

£120 inclusive of VAT per tenancy.

Attending the property, undertake an end of tenancy inspection, collect keys and meter readings and provide a photographic checkout report. There is no charge for fully managed landlords.

Landlord Withdrawal Fees (before move-in):

Should the landlord withdraw from the tenancy before it has started and where The Gray House introduces a tenant who has provided satisfactory references and is ready, willing and able to the Landlord will be liable for an abortive letting fee to cover the costs of marketing, advertising, referencing and tenancy set-up at 60% inclusive of VAT of a month rent.

Version 8.0 (09-26)

LANDLORD FEE SCHEDULE

ALL SERVICE LEVELS

PRE TENANCY CHARGES

Energy Performance Certificate (EPC)
£55 (no VAT)

Gas Safety Certificate (GSC)
£96 inclusive of VAT

Gas Safety Certificate & Annual Boiler Service
£132 inclusive of VAT (if done at the same time)

Hot Water Cylinder Annual Testing & Inspection
£60 inclusive of VAT

Supply & Install 10 year Kiddie Digital Carbon Monoxide alarm (C02)
£42 inclusive of VAT per detector

Electrical Installation Condition Report (EICR)
£180 inclusive of VAT

Supply & install Aico 10 year mains powered smoke alarms / heat detector(s)
£211.20 inclusive of VAT

Portable Appliance Testing (PAT)
£180 inclusive of VAT

Legionella Risk Assessment
£180 inclusive of VAT

Management Take-over Fees
£120 inclusive of VAT per tenancy. To cover the costs associated with taking over management of an ongoing tenancy, ensuring all statutory compliance has been undertaken, receiving and protecting the security deposit and providing all necessary legal documentation to the tenant.

Proof of Ownership (Agent to Obtain Land Reg Title)
£12 inclusive of VAT

Supply Instruction Manuals for appliances/boiler etc
£12 inclusive of VAT per manual.

ADDITIONAL SERVICES

Rent Review Fees
£30 inclusive of VAT
Review rent in accordance with current market conditions, service of a prescribed Renting Homes Wales form (periodic tenancies only with 2 months notice).

Deed of Variation / RHW3 / RHW4
£30 inclusive of VAT
To update to the Occupation Contract where we have not been provided with correct information prior to issuing the contract, or if the identity or address of the landlord changes and of the landlord's contact or service address changes to cover admin, P&P etc.

Contract Renewal Fees
£120 inclusive of VAT
per renewal. Contract negotiation, amending and updating terms, a written statement & occupation contract agreement and issue of RHW2.

Accountant Report, Y/E Statements, Copy Statements
£12.00 inclusive of VAT per request

Submission of Non-Resident Landlords Receipts to HMRC
£30 inclusive of VAT quarterly. To remit and balance the financial Return to HMRC on both a quarterly and annual basis.

Additional HMRC Reporting / Queries
£30 inclusive of VAT per request. Responding to any specific queries relating to either the quarterly or annual return from either the landlord or HMRC.

Additional / Void Property Visits
£60 inclusive of VAT per visit payable in advance.
At landlord's request we can arrange additional property visits such as to check on void / vacant properties/insurance requirements. Charges covers the costs of attending / inspecting the property (not including routine mid-term inspections as these are covered as part of fully the managed service).

Regulatory & Membership Information:
Property Redress Scheme (PRS): Membership Number PRS022329

Client Money Protection (CMP)
Company No. C0133497 (through Propertymark)

Information Commissioner's Office (ICO):
Registration No. ZA761813

Rent Smart Wales: Licensed Agent:
LR-79098-87845

Version 8.0 (09-26)

The Gray House Lettings and Property Management Limited
Birchgrove House, 102 - 104 Caerphilly Road, Cardiff CF14 4AG
info@thegrayhouse.co.uk www.thegrayhouse.co.uk 029 2069 2222 @thegrayhouseltd

Landlord Onboarding Checklist

(To be completed and returned with requested documents and signed Terms of Business)

IDENTITY & OWNERSHIP

☐ Passport or Driving Licence (each owner)
☐ Proof of Address (dated within 6 months)
☐ Certificate of Incorporation (if Ltd Company) OR ☐ Not applicable
☐ ID for each Company Director (if Ltd Company) OR ☐ Not applicable
☐ Proof of Ownership OR ☐ Please obtain Title Register on my behalf @ £12 inclusive of VAT
☐ NRL8 Approval Number _____ **(Non-UK Resident Landlord's only)**

CONSENTS & PERMISSIONS

☐ Mortgage lender consent to let (if applicable) We are under no obligation to verify that lender consent has been obtained and shall not be liable for any consequences arising from failure to obtain consent OR ☐ Not applicable
☐ Superior landlord consent (if leasehold) OR ☐ Not applicable
☐ HMO Licence (if applicable) ☐ Not applicable OR ☐ Obtain on my behalf

RENT SMART WALES

☐ Landlord Registration Number: _____ OR ☐ Not applicable
☐ Property is registered as a rental property in Wales
☐ Agent linked to RSW licence (The Gray House must be linked or letting and or management activities for fully managed clients and letting activities only for Let Only / Tenant Find Landlords)

FITNESS FOR HUMAN HABITATION (WALES)

☐ Valid EICR enclosed OR ☐ Obtain on my behalf
☐ Valid Gas Safety Certificate enclosed OR ☐ Obtain on my behalf OR ☐ Not applicable
☐ Mains wired, interlinked, in-date smoke alarms installed on each storey OR ☐ Install on my behalf
☐ An in date C0 Carbon Monoxide alarm(s) installed in every room containing a gas, oil or solid fuel-burning appliance (gas cooker / gas boiler / woodburning stove) OR ☐ Install an on my behalf
☐ Legionella Risk Assessment enclosed OR ☐ Not applicable

SAFETY & COMPLIANCE DOCUMENTATION

☐ Valid EPC exists OR ☐ Obtain on my behalf
☐ PAT Test Certificate (no more than 3 months old) (if applicable) OR ☐ Not applicable
☐ Furniture compliant with Fire Safety Regulations (if applicable) OR ☐ Not applicable
☐ Property adequately insured (landlord insurance)
☐ Asbestos survey provided ☐ Yes ☐ No ☐ Not applicable
☐ Contractor warning of Asbestos required ☐ Yes ☐ No ☐ Not applicable
☐ Manuals supplied (appliance/boiler) OR ☐ Please obtain on my behalf @ £12 inclusive of VAT per manual.

PROPERTY CONDITION & PRE-TENANCY PREPARATION

☐ Property professionally cleaned OR ☐ arrange on my behalf
☐ Sufficient keys provided (minimum: one per tenant + 1 management set)
☐ Appliance manuals supplied (cooker, boiler, hob, washing machine etc)

SERVICE LEVEL CONFIRMATION

Please tick one:
☐ Tenant Find (Let Only)
☐ Full Management
☐ HMO Management (minimum fee 21.6% inclusive of VAT)

For Fully Managed:

☐ Authorise repairs up to £300 inclusive of VAT without prior approval

☐ Use TGH retained contractors OR ☐ Use my preferred contractor (PI insurance & company details attached)

DEPOSIT INSTRUCTIONS (Tenant Find / Let Only)

☐ Agent to protect deposit in TDS

☐ Agent to protect deposit in DPS

☐ I will protect deposit myself within 30 days

AUTHORISATIONS

I give my authority for my agent to

☐ erect To Let / Let & Managed board

☐ market my property on Rightmove & social media

☐ sign Occupation Contracts on my behalf

☐ serve statutory documents as required

INSURANCE (Fully Managed Only)

☐ Purchase Rent Protection Insurance (RPI) on my behalf with the cost dependant on the rent achieved in accordance with the scale of charges at point 117 of this document.

Landlord Authority for Sub Agent Appointment

* Rightmove – Tenant and Guarantor Referencing
* Veriphy – Identity Checks, AML and compliance checks
* Biorisk Limited – Inventories, Mid Term Inspections and End of Tenancy Checkout Reports

☐ I authorise The Gray House Lettings & Property Management Ltd to instruct the above-named third-party service providers/sub-agents where required in connection with the letting and/or management of my property.

Landlord Initials: _____

DECLARATION

I confirm that:

☐ I have the legal right to let this property

☐ All information supplied is accurate and complete

☐ I understand my statutory obligations

☐ I authorise The Gray House to act on my behalf in accordance with the Terms of Business

Signed: _____

Name: _____

Date: _____

Signed: _____

Name: _____

Date: _____